

UNITED STATES BANKRUPTCY COURT
DISTRICT OF OREGON

In re

Case No. _____

☐ Amended

Debtor

**REQUEST FOR CLERK'S ENTRY OF
DEFAULT AND SUPPORTING
DECLARATION**

Request

_____ [enter name of
party requesting entry of default] (requestor) requests that the clerk enter the default of
_____ [party alleged to
be in default].

[Check a box below to indicate whether requestor is a plaintiff or defendant]

☐ The requestor is a plaintiff, and the party alleged to be in default is a defendant.

The summons was issued on _____ [enter date].

The summons fixed the deadline for the party alleged to be in default to file an answer
or motion under Federal Rule of Bankruptcy Procedures (FRBP) 7012 as [select
one]—

☐ 30 days after the issuance of the summons because the party alleged to be in
default is not the United States or its officer or agency.

☐ 35 days after the issuance of the summons because the party alleged to be in
default is the United States or its officer or agency.

☐ _____ [enter date].

The certificate of service of summons was filed as ECF No. _____ and states that
the summons and complaint were served on the party alleged to be in default on
_____ [enter date], a date not more than seven days after the summons was
issued.

☐ The requestor is a defendant, and the party alleged to be in default is a counterclaim or crossclaim defendant.

The pleading containing the counterclaim or crossclaim was filed as ECF No. _____ and contains a certificate of service stating that it was served on the party alleged to be in default on _____ [enter date].

The deadline to answer or file a motion under FRBP 7012 was [select one]—

☐ 21 days after service of the counterclaim or crossclaim because the party alleged to be in default is not the United States or its officer or agency.

☐ 35 days after the service of the counterclaim or crossclaim because the party alleged to be in default is the United States or its officer or agency.

The party alleged to be in default has failed timely to answer or file a motion under FRBP 7012.

Date Signature OSB#, if attorney

Type of Print Name

Declaration

Having personal knowledge of the facts set forth above, I, the undersigned, declare under penalty of perjury that the foregoing is true and correct and that the date below is the date on which I executed this declaration.

Date Signature OSB#, if attorney

Type of Print Name